

RECEIVED

NOTICE OF FORECLOSURE SALE

MAY 11 2026

KARA SANDS
CLERK OF THE COUNTY COURT
NUECES COUNTY, TEXAS

Deeds of Trust:

Dated: January 11, 2024
Grantor: DUAL ACTION ENTERPRISE, LLC, A WYOMING LIMITED LIABILITY COMPANY
Trustee: Chris Ferguson, managing attorney of Jack O'Boyle and Associates, a professional limited liability company
Lender: Closing Capital, LLC, an Arizona limited liability company
Loan Servicer: Capital Fund I, LLC, an Arizona limited liability company
Recorded: **Instruments #2024-2024001426 and #2024-2024001427**, both recorded on January 16, 2024, in the official Real Property (Deed) Records of NUECES COUNTY, Texas
Secures: **Promissory Note ("Note")** in the original principal amount of \$174,000.00, executed by DUAL ACTION ENTERPRISE, LLC, A WYOMING LIMITED LIABILITY COMPANY ("Borrower") and payable to the order of Lender
Maturity Date: January 1, 2025
Legal Description: **Lot Two (2), Block Twenty-Two (22), PHARAOH VALLEY NORTH UNIT 2, an addition to the City of Corpus Christi, Nueces County, Texas, according to the map of plat recorded in Volume 32, Page 72, of the Map Records of Nueces County, Texas, as to Tract 1.**

Lot Nineteen (19), Block Six (6), LA PASCUA NO. 2, a subdivision of the City of Corpus Christi, Nueces County, Texas, as shown by the map or plat thereof, recorded in Volume 13, Page 50, Map Records of Nueces County, Texas, as to Tract 2; and more commonly known as 6633 Sahara Drive, Corpus Christi, Texas 78412 and 4530 Jose Drive, Corpus Christi, Texas 78416.

FORECLOSURE SALE:

Date: **Tuesday, June 2, 2026**
Time: The sale of the Property will be held between the hours of **10:00 a.m. and 1:00 p.m.** local time; the earliest time at which the Foreclosure Sale will begin is **10:00 a.m.** and not later than three hours thereafter.
Place: **AT THE SOUTH ENTRANCE OF THE NUECES COUNTY COURTHOUSE FACING LIPAN STREET, OR IF THE PRECEDING AREA IS NO LONGER THE DESIGNATED**



AREA, AT THE AREA MOST RECENTLY DESIGNATED BY
THE COUNTY COMMISSIONERS COURT

Terms of Sale: The Foreclosure Sale will be conducted as a public auction and the Property will be sold to the highest bidder for cash, except that Lender's or Loan Servicer's bid may be by credit against the indebtedness secured by the lien of the Deed of Trust.

Substitute Trustee: Bennett M. Wyse, Ted Gambordella, Arnold Mendoza, Sandra Mendoza, Alexis Mendoza, AND/OR Adolfo Rodriguez

Default has occurred in the payment of the Note and in the performance of the obligations of the Deed of Trust. Because of that default, Lender, the owner and holder of the Note, or its Loan Servicer, has requested Substitute Trustee to sell the Property.

The Deed of Trust may encumber both real and personal property. Formal notice is hereby given of Lender's, or Loan Servicer's election to proceed against and sell both the real property and any personal property described in the Deed of Trust in accordance with Lender's rights and remedies under the Deed of Trust and section 9.604(a) of the Texas Business and Commerce Code.

Therefore, notice is given that on and at the Date, Time, and Place for the Foreclosure Sale described above, Substitute Trustee will sell the Property in accordance with the Terms of Sale described above, the Deed of Trust, and applicable Texas law.

If Lender or Loan Servicer passes the Foreclosure Sale, then notice of the date of any rescheduled foreclosure sale will be reposted and refiled in accordance with the posting and filing requirements of the Deed of Trust and the Texas Property Code.

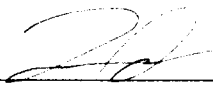
The Foreclosure Sale will be made expressly subject to any title matters set forth in the Deed of Trust, but prospective bidders are reminded that by law the Foreclosure Sale will necessarily be made subject to all prior matters of record affecting the Property, if any, to the extent that they remain in force and effect and have not been subordinated to the Deed of Trust. For the avoidance of doubt, the Foreclosure Sale will not cover any part of the Property that has been released of public record from the lien and/or security interest of the Deed of Trust by Lender, or Loan Servicer. Prospective bidders are strongly urged to examine the applicable property records to determine the nature and extent of such matters, if any.

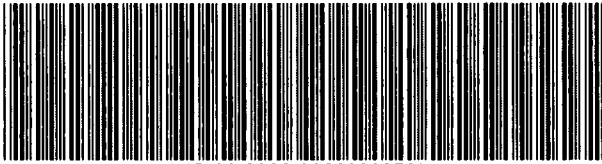
Pursuant to section 51.009 of the Texas Property Code, the Property will be sold "AS IS," without any expressed or implied warranties, except as to the warranties (if any) provided for under the Deed of Trust. Prospective bidders are advised to conduct an independent investigation of the nature and physical condition of the Property.

Pursuant to section 51.0075(a) of the Texas Property Code, Substitute Trustee reserves the right to set further reasonable conditions for conducting the Foreclosure Sale. Any such further conditions shall be announced before bidding is opened for the first sale of the day held by Substitute Trustee.

THIS INSTRUMENT APPOINTS THE SUBSTITUTE TRUSTEE(S) IDENTIFIED HEREIN TO SELL THE PROPERTY DESCRIBED IN THE SECURITY INSTRUMENT IDENTIFIED IN THIS NOTICE OF SALE. THE PERSON SIGNING THIS NOTICE IS THE ATTORNEY, SUBSTITUTE TRUSTEE, OR OTHER AUTHORIZED AGENT OF THE MORTGAGEE OR LOAN SERVICER.

SUBSTITUTE TRUSTEE:

By: 
Ted Gambordella, Substitute Trustee
5910 N Central Expy, Suite 920
Dallas, Texas 75206
Tel. (214) 473-5551
Fax. (214) 540-9333
Tgambordella@prattaycock.com



VG-38-2026-2026000270

Nueces County
Kara Sands
Nueces County Clerk

Instrument Number: 2026000270

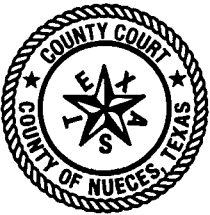
Foreclosure Posting
FORECLOSURE NOTICE

Recorded On: May 11, 2026 03:53 PM

Number of Pages: 4

" Examined and Charged as Follows: "

Total Recording: \$7.00



STATE OF TEXAS
Nueces County

I hereby certify that this Instrument was filed in the File Number sequence on the date/time printed hereon, and was duly recorded in the Official Records of Nueces County, Texas

Kara Sands
Nueces County Clerk
Nueces County, TX

***** **THIS PAGE IS PART OF THE INSTRUMENT** *****

Any provision herein which restricts the Sale, Rental or use of the described REAL PROPERTY because of color or race is invalid and unenforceable under federal law.

File Information:

Document Number: 2026000270
Receipt Number: 20260511000206
Recorded Date/Time: May 11, 2026 03:53 PM
User: Lisa C
Station: CLERK06

Record and Return To:

PIONEER LAND SERVICES
3737 REYNOSA ST

CORPUS CHRISTI TX 78416-1528